

BEFORE THE
FEDERAL MARITIME COMMISSION

FMC DOCKET NO. 22-03

ONE BANANA NORTH AMERICA CORP.
Complainant,

v.

HAPAG-LLOYD AG AND HAPAG-LLOYD (AMERICA) LLC
Respondent.

**THREE RIVERS TRUCKING, INC.'S MOTION TO QUASH OR MODIFY SUBPOENA
OR IN THE ALTERNATIVE FOR A PROTECTIVE ORDER.**

Comes now, Three Rivers Trucking, Inc. ("TRT"), by its undersigned attorneys, and submits its Motion to Quash or Modify a subpoena for testimony and documents (the "Subpoena", attached as Exhibit A) served by Complainant One Banana North American Corp.'s ("OBNA") or otherwise for a protective order as follows¹:

Background Facts

As a courtesy, counsel for TRT agreed to accept service of the Subpoena as of October 17, 2022, thus this motion is timely per 46 CFR §502.132. First, as a technical matter, the Subpoena is directed to "3 Rivers Trucking" at 1825 E. Main Street, Suite 8, Visalia, CA 93292. Per the Federal Motor Carrier Safety Administration data base, "3 Rivers Trucking" is listed as 3 Rivers

¹ TRT brings this motion without prejudice as to and does not waive any objection to any testimony or document requested.

Trucking LLC located in Kersey Colorado (Exhibit B). Since the Subpoena has not been directed to the correct entity it may be quashed on that basis alone. Provided however, the Presiding Officer would also consider the merits of the motion as if the Subpoena had been directed to TRT, the following information and argument is provided.

OBNA filed its Amended Verified Complaint in this matter on or about February 17, 2022 against Hapag-Lloyd AG (“HL”) and Hapag Lloyd (America) LLC alleging, inter alia, violations of the Shipping Act, 46 USC §§41102(c) and 41104(a)(10) related to HL’s demurrage and detention practices in the ports of Los Angeles and Long Beach. As part of its allegations, OBNA recounts communications with an unnamed trucker where OBNA “reached out to a trucking company to arrange for pickup of Hapag Lloyd containers, the company would only do so if One Banana paid \$12,000 to cover anticipated per diem charges that the trucking company would be charged by Hapag Lloyd due to unavailable empty return locations...” OBNA Amended Complaint, page 5. In communications with the undersigned counsel, OBNA has produced emails between OBNA and TRT suggesting that the referenced communications were with TRT. OBNA has offered such communications as the basis for the need for additional documents and testimony from TRT.

However, notwithstanding the brief communications between TRT and OBNA, OBNA NEVER engaged TRT to provide any drayage services (see Declaration of Alex Cortes, page 2). Also for clarity, notwithstanding its name, TRT is not currently a motor carrier. Instead any trucking services would have been provided by Orange Avenue Express, Inc. (“OAE”) its sister company. OAE was the complainant against HL in docket no 21-10. OAE and HL have settled that matter, and the presiding officer has approved their settlement.

OBNA admits it has not engaged TRT (or for that matter OAE) to provide trucking services at all. Nevertheless, it insists on moving forward with a burdensome Subpoena seeking documents and testimony from TRT for shipments it did not handle. TRT requested OBNA withdraw the Subpoena but OBNA has refused.

The Subpoena requests testimony and documents related to 104 containers of OBNA shipments imported on 10 different vessels. Searching for documents which are known not to exist and/or providing testimony on shipments it did not handle, would burden TRT with absolutely no benefit to OBNA.

Procedural Posture of the Case

TRT questions if the Subpoena was proper in the first instance sine it was issued past the discovery cut off. Originally discovery was to be completed no later than October 7, 2022 (see Revised Scheduling Order, served June 22, 2022). On September 1, 2022, OBNA and HL jointly reported to the court that they had reached a settlement in principle and requested adjournment of all pending dates. That request was granted. On October 14, 2022, without further explanation OBNA and HL reported that settlement was not consummated and requested a new scheduling order. However at this time, the Presiding Officer has not issued any new deadlines which would allow this deposition to go forward. The initial decision in this matter is due January 19, 2023.

Argument

As a preliminary matter, 46 CFR §502.132(c) provides: “If served in connection with the taking of a deposition pursuant to § 502.143 ...the person to whom the subpoena is directed may move to quash or modify the subpoena within ten (10) days after service of the subpoena, and a reply to such motion shall be served within seven (7) days thereafter.” Further in addition to the motion to quash, the Presiding Officer has the authority to terminate or limit the deposition per 46

CFR §502.143(d)(2).² In addition, 46 CFR §502.12 provides: “In proceedings under this part, for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice.”

A third party witness in receipt of a subpoena may move: to quash the subpoena; or to modify the subpoena (FRCP 45(d)(3)); or for a protective order under FRCP Rule 26(c) (to prevent annoyance, embarrassment, oppression, undue burden or expense); See *Auto-Owners Ins. Co. v. Southeast Floating Docks, Inc.* (MD FL 2005) 231 FRD 426, 428

In addition to quashing the subpoena, the court may, in its discretion, “impose an appropriate sanction—which may include ... reasonable attorney's fees—on a party or attorney” who fails to take “reasonable steps” to avoid imposing an undue burden or expense on the subpoenaed person. FRCP Rule 45(d)(1).

1. The Subpoena Was Not Directed to Three Rivers Trucking But Instead Was Directed To 3 Rivers Trucking Instead

The Subpoena on its face is directed to “3 Rivers Trucking”. The undersigned represents “Three Rivers Trucking, Inc.” TRT is not a motor carrier. According to the FMSCA safer public info on licensed motor carriers, 3 Rivers Trucking LLC is a motor carrier located in Colorado. As such the Subpoena should be quashed as defective since it was served on counsel for Three Rivers Trucking, not 3 Rivers Trucking. To the extent the presiding officer finds the Subpoena to be valid as directed to TRT, the Subpoena should be quashed based on the further arguments herein.

² Admittedly this rule refers to motions made during the deposition; however, the presiding officer also has the ability to waive any rule to prevent undue hardship or manifest injustice 46 CFR §502.10.

2. The Subpoena Must Be Quashed Since It Creates Undue Burden On TRT

The court “must” quash or modify a subpoena upon finding that it subjects the witness to undue burden. [FRCP Rule 45(d)(3)(A)(iv); see also FRCP Rule 45(d)(1)]. In general, discovery may be refused where the burden of the proposed discovery outweighs its likely benefits. FRCP Rule 26(b)(2); *Cascade Yarns, Inc. v. Knitting Fever, Inc.* (1st Cir. 2014) 755 F3d 55, 58-59.

A fair reading of the Subpoena shows it seeks testimony and documents related to OBNA shipments with HL. TRT did not provide any services to OBNA for its shipments (see Declaration of Alex Cortes, Page 2). Thus, forcing TRT to sit for deposition on OBNA shipments and/or search for documents which OBNA knows do not exist is burdensome as to TRT with absolutely no benefit to OBNA.

Should OBNA argue that the scope the subpoena is broader than dealing with OBNA shipments, then such documents should not be requested from TRT since they can be obtained from a party or other sources without the need to seek them from a nonparty by subpoena. *Soto v. Castlerock Framing & Transport, Inc.* (ED CA 2012) 282 FRD 492, 505; *Nidec Corp. v. Victor Co. of Japan* (ND CA 2007) 249 FRD 575, 577. For example, documents and testimony can be obtained from HL (such as general information as to shut out days or dual transaction requirements) or from its own agents and vendors which did provide drayage services to OBNA regarding appointments to pick up full or return empty OBNA containers. Except for the emailed quote, which is already in the possession of OBNA, TRT would not have any information directly related to OBNA shipments. Instead the information sought is in the possession of OBNA, HL and OBNA’s vendors/agents.

As mentioned, to the extent it seeks general information on shutting out, requiring dual transactions or appointments for OBNA containers, if OBNA does not have that information, it can also come from HL, terminals used by HL or OBNA's truckers.

To the extent OBNA suggests TRT should provide information as to its efforts to pick up or return empty HL containers for other customers such efforts by definition would necessarily be unrelated to OBNA. As such there is no direct information TRT would have related to OBNA shipments. The Subpoena *must* be quashed, since the burden as to TRT outweighs any benefit as to OBNA.

3. The Subpoena Should Be Quashed Since It Is Overbroad And Abusive

The Subpoena also improperly includes overbroad definitions.. Testimony and documents are improperly requested not only from "3 Rivers Trucking" [sic] but also from "its parents, subsidiaries, owners, shareholders, affiliate, predecessors, successors, members, partner, joint venture partners, officers, directors, executive, managers, employees, crew, agents, charters, representatives, attorneys, experts, investigators and insurers..." The Subpoena is "way too broad" and "abusively drawn" and should be quashed because of the burden imposed on TRT. *Mattel, Inc. v. Walking Mountain Productions* (9th Cir. 2003) 353 F3d 792, 813. Further seeking documents outside of the possession or control of a witness is improper. *Ghawanmeh v. Islamic Saudi Acad.*, 274 F.R.D. 329, 79 Fed. R. Serv. 3d (Callaghan) 980, 2011 U.S. Dist. LEXIS 49784 (D.D.C. 2011). OBNA cannot seek documents from these other potential third party witnesses without a properly served subpoena directed to these other persons or entities.

4. The Subpoena Seeks Compliance After the Discovery Cut Off

Thus far, the discovery cut off in this matter was set October 7, 2022. The parties have a request for additional time to conduct discovery, which remains unsettled. At present since the

Subpoena requires compliance after the discovery cut off, it should be quashed. *Rice v. United States*, 164 F.R.D. 556, 1995 U.S. Dist. LEXIS 20785 (N.D. Okla. 1995). TRT further questions the need for further discovery from a third party, especially when the OBNA and HL had previously reported that they had a settlement in principle.

5. The Subpoena Seeks Uncompensated Expert Testimony

A subpoena “may” be quashed or modified if it seeks disclosure of an “unretained expert's opinion or information” See FRCP Rule 45(d)(3)(B)(ii); *Mattel, Inc. v. Walking Mountain Productions* (9th Cir. 2003) 353 F3d 792, 814. Since it is clear that TRT provided no services to OBNA, whether characterized as seeking information about OBNA shipments and/or the general state of affairs at the LA/LB harbor complex, such testimony or documents amount to a request to TRT to provide uncompensated expert testimony. Further, TRT should not be forced to opine on these matters without compensation when the same information can be had by OBNA, HL or their agents.

6. The Subpoena Seeks Privileged And Confidential Information

In addition to seeking information from TRT, it also improperly seeks information from, *inter alia*, its attorneys. Information in the possession of or communications with its attorney would be subject to attorney client and attorney work product privilege claims. Furthermore, since TRT did not provide services to OBNA, any information it may have as to the pick up or delivery of HL containers would be for other customers, which should remain confidential. Thus, the Subpoena should be quashed since it seeks privileged or sensitive commercial information. See FRCP Rule 45(d)(3)(A)(iii); *In re Vitamins Antitrust Litig.* (SD OH 2003) 267 F.Supp.2d 738, 741; FRCP Rule 45(d)(3)(B)(i); *Cohen v. City of New York* (SD NY 2008) 255 FRD 110, 117-119.

7. Sanctions Are Appropriate Against OBNA

Commission regulations and rules of practice appear to be silent as to specifically allowing or disallowing monetary sanctions in this situation. However, as indicated, the Presiding Officer may borrow from the FRCP “when consistent with sound administrative practice.” 46 CFR §502.12. In this case, where OBNA insists to move forward with a defective Subpoena, seeking non-existent documents and uncompensated expert testimony, allowing monetary sanctions is appropriate. TRT is not a party to this docket and thus does not have possible remedies of evidentiary sanctions or default sanctions available to it. Following the FRCP, in addition to quashing the Subpoena, the Presiding Officer may, in its discretion, “impose an appropriate sanction—which may include ... reasonable attorney's fees—on a party or attorney” who fails to take “reasonable steps” to avoid imposing an undue burden or expense on the subpoenaed person. FRCP 45(d)(1); *Legal Voice v. Stormans, Inc.* (9th Cir. 2013) 738 F3d 1178, 1185. When this instant motion is granted, and if it is found that TRT is entitled to an award of attorney’s fees, TRT requests leave to file the appropriate declaration or petition to support the amount of such an award, on a schedule convenient to the Presiding Officer.

Whether couched in terms of a motion to quash/modify or for a protective order, TRT has demonstrated that the defective Subpoena would require undue burden, seeks improper expert testimony and seeks confidential/privileged information without any probative value as to OBNA.

Date: October 27, 2022

Respectfully submitted,

Stephen M
Uthoff

Digitally signed by
Stephen M Uthoff
Date: 2022.10.27
10:12:11 -07'00'

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Attorneys for Three Rivers Trucking, Inc.

CERTIFICATE OF SERVICE

I hereby certify that on October 27, 2022, the foregoing Motion to Quash has been served upon all interested persons and parties by electronic means pursuant to the below list.

Executed in Long Beach, California, October 27, 2022.

Stephen M
Uthoff

Digitally signed by Stephen
M Uthoff
Date: 2022.10.27 10:12:37
-07'00'

Stephen M. Uthoff

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BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-03

ONE BANANA NORTH AMERICA CORP.,
COMPLAINANT

v.

HAPAG-LLOYD AG and
HAPAG-LLOYD (AMERICA) LLC,
RESPONDENTS.

RIDER TO SUBPOENA FOR DEPOSITION DUCES TECUM DIRECTED TO

3 RIVERS TRUCKING
1825 E. MAIN STREET, SUITE 8
VISALIA, CA 93292
suthoff@uthofflaw.com

TESTIMONY: YOU ARE COMMANDED to appear at the time, date, and place set forth below to testify upon oral examination at a deposition to be taken in this action. If you are an organization, you must promptly confer in good faith with the party serving this subpoena about the following matters, or those set forth in an attachment, and you must designate one or more officers, directors, or managing agents, or designate other persons who consent to testify on your behalf about these matters pursuant to 46 C.F.R. § 502.143(b)(6):

Place: FisherBroyles LLP Milestone Court Reporting (Zoom link to be provided)	Date and Time: November 10, 2022; 10 am to 2 pm EST
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The deposition will be recorded stenographically and by means of video and audio.

PRODUCTION: You, or your representatives, must also bring with you to the deposition the following documents, electronically stored information, or objects, and must permit inspection, copying, testing, or sampling of the material.

Pursuant to FMC Rule 502.132, you “may move to quash or modify the subpoena within ten (10) days after service of the subpoena, and a reply to such motion shall be served within seven (7) days thereafter.” 46 C.F.R. § 502.132.

DEFINITIONS

1. The term “communication” means the transmittal of information (in the form of facts, ideas, inquiries, or otherwise, and whether verbally or in writing, or otherwise).
2. The term “document” is synonymous in meaning and equal in scope to the usage of the term “documents or electronically stored information” in 46 C.F.R. § 502.146(A)(1)(i). A draft or non-identical copy is a separate document within the meaning of this term.
3. When referring to a person, “to identify” means to give, to the extent known, the person’s full name, present or last known address, telephone number, and email address, and when referring to a natural person, additionally, the present or last known place of employment. Once a person has been identified in accordance with this paragraph, only the full name of that person need be listed in response to subsequent discovery requesting the identification of that person.
4. When referring to documents, “to identify” means to give, to the extent known, the (i) type of document; (ii) general subject matter; (iii) date of the document; and (iv) author(s), addressee(s) and recipient(s).
5. The term “person” is defined as any natural person or any legal entity, including, without limitation, any business or governmental entity or association.
6. The term “concerning” means relating to, referring to, with respect to, with regard to, describing, evidencing, or constituting.
7. The terms “You” and “Your” means 3 RIVERS TRUCKING and all parents, subsidiaries, owners, shareholders, affiliates, predecessors, successors, members, partners, joint venture partners, officers, directors, executives, managers, employees, crew, agents, charterers, representatives, attorneys, experts, investigators and insurers of 3 RIVERS TRUCKING
8. The term “OBNA Containers” means containers identified in Appendix A.
9. The term “LALB” means the ports of Los Angeles and Long Beach collectively.
10. The term “HL” refers to Hapag Lloyd AG, its affiliates and agents. and all parents, subsidiaries, owners, shareholders, affiliates, predecessors, successors, members, partners, joint venture partners, officers, directors, executives, managers, employees, crew, agents, charterers, representatives, attorneys, experts, investigators and insurers of Hapag Lloyd AG.

INSTRUCTIONS FOR PRODUCTION OF DOCUMENTS

1. Unless otherwise specified, these Subpoena seeks documents, communications, and/or information from September 1, 2021 through December 15, 2021 (inclusive).

2. The following rules of construction also apply to all Discovery Requests:
 - a. The terms “all,” “any,” and “each” shall each be construed as encompassing any and all.
 - b. The connectives “and” and “or” shall be construed either disjunctively or conjunctively as necessary to bring within the scope of the discovery request all responses that might otherwise be construed to be outside of its scope.
 - c. The use of the singular form of any word includes the plural and vice versa.
 - d. The masculine gender of any word used herein includes the feminine, and vice versa.
 - e. The word “including” shall mean “including without limitation.”
 - f. The use of a verb in any tense, mood, or voice shall be construed as the use of the verb in all tenses, moods, or voices, as necessary to bring within the scope of a Discovery Request all information that might otherwise be construed to be outside of its scope.

3. All electronically stored information (“ESI”) responsive to these Discovery Requests shall be produced both in native format and as sequentially Bates numbered single-page images (black and white TIF files for ESI files that originally appeared in black and white and color JPG files for ESI files that originally contained color), except for Excel worksheets and any other ESI files that are unreadable as TIF files, which shall be produced in native format with placeholder TIF files. Each native-format ESI file produced shall be named per the Bates number of the first page of the corresponding TIF or JPG image(s) for that ESI file (i.e., its “BegNo”). Document-level extracted text or optical character recognition (“OCR”) text shall be provided for each ESI file produced, also named per the ESI file’s production BegNo. Concordance load files containing at least the following metadata for each ESI file produced shall be included with the production: BegNo, EndNo, BegAttach, EndAttach, PgCount, Custodian, From, To, Cc, Bcc, Email Subject, Date Sent, Date Received, Time Sent, Time Received, File Extension, Author, Company, Date Created, Date Last Modified, File Name, Original File Path, File Size, and MD5 Hash.

4. If You consider any document, communication, and/or information requested by any of these Discovery Requests to be subject to withholding from production due to the attorney- client privilege, the attorney work product doctrine, any joint defense or common interest privilege, or any other privilege, then Plaintiff requests that You provide for each such document, communication, and/or piece of information identifying information sufficient to show for each document the author(s)/sender(s), recipient(s), date(s), subject line or title, and description of the privilege that You contend applies.

MATTERS OF ORAL EXAMINATION

1. Demurrage, detention or any other charges imposed or anticipated to be imposed by any party in connection with OBNA Containers.
2. Your ability or inability to obtain appointments for the pick-up of the loaded OBNA Containers or return of empty OBNA Containers.
3. Your ability or inability to obtain appointments for the pick-up of HL's loaded containers or return of empty containers in LALB in 2020.
4. Shut-out or shut out days at the terminal as pertains to the pick up or return the OBNA Containers.
5. The practice of dual appointments pursuant to which you were required to or de-facto forced to return an empty container at the same time as picking up a loaded container as pertains to OBNA Containers.
6. The practice of dual appointments pursuant to which you were required to or de-facto forced to return an empty container at the same time as picking up a loaded container as pertains to containers delivered by HL.
7. Any delays of any nature in connection with picking up or returning the OBNA containers.
8. Your offered rates or quotes for picking up OBNA Containers.

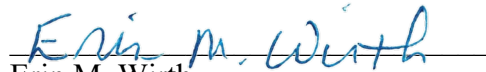
REQUESTS FOR PRODUCTION

1. All documents and communications with or among any persons, other than OBNA, including documents and communications within Your organization, concerning the OBNA Containers that arrived at LALB on the following vessels during the specified time period.

- Long Beach Express 01W29
- Cap Jervis 127W
- Balao V311W
- Dallas Express 18W31
- Rotterdam Express 01W32
- Tokyo Express 19W33
- Fos Express 02W35
- Seattle Express 02W36
- NYK Maria 613W
- Kobe Express 21W38

that relate to:

- (a) demurrage, detention or any other charges imposed or potentially imposed by any party in connection with OBNA Containers;
- (b) Your ability or inability to obtain appointments for the pick-up of the loaded OBNA Container or return of empty OBNA Containers;
- (c) any shut-out or shut out days at the terminal;
- (d) the HL practice of dual appointments pursuant to which you were required to or de-facto forced to return an empty container at the same time as picking up a loaded container; and
- (e) any delays of any nature in connection with picking up or returning the OBNA Containers.


Erin M. Wirth
Chief Administrative Law Judge

APPENDIX A

OBNA CONTAINERS

1. BMOU9211984
2. FSCU5668990
3. GESU9484240
4. HLBU9001487
5. HLBU9093884
6. HLBU9103128
7. HLBU9002138
8. HLXU8749213
9. HLXU8751798
10. LNXU9657486
11. SEGU9102506
12. SEGU9116731
13. TCLU1184554
14. TCLU1317596
15. UACU4737647
16. UACU4779621
17. BMOU9765219
18. BMOU9767320
19. CRLU1297764
20. CXRU1350800
21. GESU9385459
22. GESU9482119
23. GESU9502684
24. HLBU9004418
25. HLBU9130015
26. HLBU9388340
27. HLBU9455324
28. HLBU9503510
29. HLBU9605928
30. TCLU1122850
31. UACU4728780
32. UACU4729214
33. UACU4737971
34. BMOU9700603
35. HLBU9171903
36. HLBU9243916
37. HLBU9244492
38. HLBU9264740
39. HLBU9269757
40. HLBU9428859
41. HLBU9494676
42. HLXU8711861
43. BMOU9802462
44. HLBU9047600

45. HLBU9316294
46. HLBU9598475
47. HLXU8750554
48. HLXU8755957
49. TEMU9054894
50. UACU4777090
51. BMOU9221283
52. CPSU5107458
53. CPSU5145648
54. CRLU1273839
55. CRLU1377031
56. CRLU7270919
57. GESU9349451
58. HLBU9006107
59. HLBU9039693
60. HLBU9113194
61. HLBU9261720
62. HLBU9318743
63. HLBU9383522
64. HLBU9445497
65. HLBU9514643
66. HLXU8723076
67. HLXU8736582
68. HLXU8738245
69. HLXU8739452
70. HLXU8745516
71. HLXU8759485
72. HLXU8761420
73. HLXU8761693
74. LNXU7552017
75. TCLU1039155
76. TCLU1121710
77. TCLU1128817
78. UAEU1237049
79. BMOU9212300
80. BMOU9217257
81. BMOU9218490
82. CSVU7503632
83. HLBU9181917
84. HLBU9268262
85. HLBU9442414
86. HLBU9500125
87. HLBU9705932
88. HLXU8747191
89. HLXU8773077
90. HLXU8789746

91. SEGU9420791
92. TCLU1020864
93. TEMU9231182
94. HLBU9084624
95. HLBU9422568
96. HLBU9625776
97. LNXU9655101
98. TEMU9839737
99. UACU4759517
100. HLBU9246540
101. HLBU9414433
102. HLBU9434316
103. HLBU9399597
104. HLBU9555088

☐ USDOT Number ☐ MC/MX Number ☒ Name

Enter Value: 3 RIVERS TRUCKING LLC

Search

Company Snapshot

3 RIVERS TRUCKING LLC

USDOT Number: 3310162

ID/Operations | [Inspections/Crashes In US](#) | [Inspections/Crashes In Canada](#) | [Safety Rating](#)

Carriers: If you would like to update the following ID/Operations information, please complete and submit form [MCS-150](#) which can be obtained [online](#) or from your State FMCSA office. If you would like to challenge the accuracy of your company's safety data, you can do so using FMCSA's [DataQs](#) system.

Carrier and other users: FMCSA provides the Company Safety Profile (CSP) to motor carriers and the general public interested in obtaining greater detail on a particular motor carrier's safety performance then what is captured in the Company Snapshot. To obtain a CSP please visit the [CSP order page](#) or call (800)832-5660 or (703)280-4001 (Fee Required).

For help on the explanation of individual data fields, click on any field name or for help of a general nature go to [SAFER General Help](#).

The information below reflects the content of the FMCSA management information systems as of **10/26/2022**. **Carrier Registration Information Outdated.**
Carrier VMT Outdated.

Other Information for this Carrier

▼ [SMS Results](#)

▼ [Licensing & Insurance](#)

Entity Type:	CARRIER		
Operating Status:	ACTIVE	Out of Service Date:	None
Legal Name:	3 RIVERS TRUCKING LLC		
DBA Name:			
Physical Address:	28045 COUNTY ROAD 46 KERSEY, CO 80644-9222		
Phone:	(970) 397-9526		
Mailing Address:	28045 COUNTY ROAD 46 KERSEY, CO 80644-9222		
USDOT Number:	3310162	State Carrier ID Number:	
MC/MX/FF Number(s):		DUNS Number:	--
Power Units:	1	Drivers:	1
MCS-150 Form Date:	07/12/2019	MCS-150 Mileage (Year):	
Operation Classification:			
☒ Auth. For Hire ☐ Exempt For Hire ☐ Private(Property) ☐ Priv. Pass. (Business) ☐ Priv. Pass.(Non-business) ☐ Migrant ☐ U.S. Mail ☐ Fed. Gov't ☐ State Gov't ☐ Local Gov't ☐ Indian Nation			
Carrier Operation:			
☐ Interstate ☐ Intrastate Only (HM) ☒ Intrastate Only (Non-HM)			
Cargo Carried:			
☒ General Freight ☐ Household Goods ☐ Metal: sheets, coils, rolls ☐ Motor Vehicles ☐ Drive/Tow away ☐ Logs, Poles, Beams, Lumber ☐ Building Materials ☐ Mobile Homes ☐ Machinery, Large Objects ☐ Fresh Produce ☐ Liquids/Gases ☐ Intermodal Cont. ☐ Passengers ☐ Oilfield ☐ Equipment ☐ Livestock ☐ Grain, Feed, Hay ☐ Coal/Coke ☐ Meat ☐ Garbage/Refuse ☐ US Mail ☐ Chemicals ☐ Commodities Dry Bulk ☐ Refrigerated Food ☐ Beverages ☐ Paper Products ☐ Utilities ☐ Agricultural/Farm Supplies ☐ Construction ☐ Water Well ☒ OTHER			

[ID/Operations](#) | [Inspections/Crashes In US](#) | [Inspections/Crashes In Canada](#) | [Safety Rating](#)

Exhibit B

US Inspection results for 24 months prior to: 10/26/2022

Total Inspections: 0
Total IEP Inspections: 0

Note: Total inspections may be less than the sum of vehicle, driver, and hazmat inspections. Go to [Inspections Help](#) for further information.

Inspections:				
Inspection Type	Vehicle	Driver	Hazmat	IEP
Inspections	0	0	0	0
Out of Service	0	0	0	0
Out of Service %	0%	0%	0%	0%
Nat'l Average % as of DATE 09/30/2022*	21.78%	6.37%	4.45%	N/A

*OOS rates calculated based on the most recent 24 months of inspection data per the latest monthly SAFER Snapshot.

Crashes reported to FMCSA by states for 24 months prior to: 10/26/2022

Note: Crashes listed represent a motor carrier's involvement in reportable crashes, without any determination as to responsibility.

Crashes:				
Type	Fatal	Injury	Tow	Total
Crashes	0	0	0	0

[ID/Operations](#) | [Inspections/Crashes In US](#) | [Inspections/Crashes In Canada](#) | [Safety Rating](#)

Canadian Inspection results for 24 months prior to: 10/26/2022

Total inspections: 0

Note: Total inspections may be less than the sum of vehicle and driver inspections. Go to [Inspections Help](#) for further information.

Inspections:		
Inspection Type	Vehicle	Driver
Inspections	0	0
Out of Service	0	0
Out of Service %	0%	0%

Crashes results for 24 months prior to: 10/26/2022

Note: Crashes listed represent a motor carrier's involvement in reportable crashes, without any determination as to responsibility.

Crashes:				
Type	Fatal	Injury	Tow	Total
Crashes	0	0	0	0

[ID/Operations](#) | [Inspections/Crashes In US](#) | [Inspections/Crashes In Canada](#) | [Safety Rating](#)

The Federal safety rating does not necessarily reflect the safety of the carrier when operating in intrastate commerce.

[Carrier Safety Rating:](#)

The rating below is current as of: 10/26/2022

Review Information:

Rating Date:	None	Review Date:	None
Rating:	None	Type:	None